

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT:

THE HONOURABLE MR.JUSTICE S.S.SATHEESACHANDRAN

TUESDAY, THE 2ND DAY OF APRIL 2013/12TH CHAITHRA 1935

Crl.MC.No. 2498 of 2012 ()

**AGAINST THE ORDER/JUDGMENT IN CMP.6885/2011 of JUDICIAL MAGISTRATE OF
FIRST CLASS-II, KOLLAM DATED 13-04-2012**

PETITIONER(S)/PETITIONER:

**A.ABDUL AZEEZ,
S/O.ALIYARKUNJU, KALEELAZHIKATHUVEEDU
UMAYANALLOOR.P.O, VADAKKUMKARA KIZHAKKU, KOLLAM.**

**BY ADVS.SRI.K.JAGADEESCHANDRAN NAIR
SRI.J.KRISHNAKUMAR**

RESPONDENTS/RESPONDENTS:

- 1. M.NISSAM,
S/O.MEERA, ADONIZ HOUSE, THAZHUTHALA VILLAGE
VADAKKUMKARAKIZHAKKECHERI, KOTTIYAM. 691 571.**
- 2. STATE OF KERALA,
REPRESENTED BY PUBLIC PROSECUTOR
HIGH COURT OF KERALA, ERNAKULAM.**

**R1 BY ADV. SRI.KALEESWARAM RAJ
R BY PUBLIC PROSECUTOR SMT.R.REMA**

**THIS CRIMINAL MISC. CASE HAVING BEEN FINALLY HEARD ON 19.12.2012,
THE COURT ON 02.04.2013 PASSED THE FOLLOWING:**

APPENDIX

PETITIONERS EXHIBITS:

ANNEXURE I: COPY OF THE COMPLAINT DATED 28.11.2011.

ANNEXURE II: COPY OF THE ORDER DATED 13.04.2012.

ANNEXURE III: COPY OF THE JUDGMENT IN WPC.29574/2008, DATED 17.02.2010.

ANNEXURE IV: COPY OF THE PETITION FILED BY THE RESPONDENT BEFORE THE ELECTION COMMISSIONER IN 2006.

RESPONDENT'S EXHIBITS: NIL

//TRUE COPY//

P.A. TO JUDGE

C.R.

S.S.SATHEESACHANDRAN, J.

Crl.M.C.NO.2498 OF 2012 (B)

Dated this the 2nd day of April, 2013

O R D E R

Petitioner, an accused in a pending case before the Judicial First Class Magistrate Court-II, Kollam, has filed the above petition under Section 482 of the Code of Criminal procedure, for short, the 'Code'. Criminal proceedings against him on Annexure I complaint filed by 1st respondent are an abuse of process of the court and it is liable to be quashed invoking the inherent powers of this Court, is his case.

2. Petitioner/accused contested as a candidate in the General Election held to the Kerala Legislative Assembly in 2011. He then suppressed true facts about his educational qualifications, knowing fully well what was stated is false, according to complainant. Petitioner had furnished incorrect and false statements regarding his educational qualifications in

the affidavit sworn to and produced with his nomination paper, is the case of complainant to prosecute him for offences punishable under Section 125-A of the Representation of the People Act, 1951, for short, the 'Act', and Sections 171G, 193, 198 and 199 of the Indian Penal Code, for short, the 'IPC'.

3. In the enquiry over the complaint, complainant and three witnesses produced by him were examined as CW1 to CW4, and documents produced exhibited as C1 to C11. On the materials placed as above, learned Magistrate forming a conclusion that a prima facie case has been made out to proceed against the accused took cognizance of the offences under Sections 193, 198 and 199 of the IPC and Section 125-A of the Act, and ordered summons to him. Annexure II is copy of the order passed by the Magistrate directing process to the accused. Petitioner has filed the above petition for quashing Annexure I complaint and all further proceedings thereof under Section 482 of the Code.

4. I heard the counsel on both sides. Learned counsel for petitioner Sri.K.Jagadeesachandran Nair contending that the allegations raised in the complaint do not make out any offence, even prima facie, under the Act or the IPC, to proceed against the accused, submitted the Magistrate has gone wrong in passing Annexure II order for issuing process to the accused. Previously, the complainant had filed a writ petition before this Court against the order of Returning Officer declining to take action on his complaint raising similar allegations over the particulars furnished in the affidavit when petitioner contested the election in 2006, and that was dismissed by Annexure III judgment. Challenge in the writ petition against the order of Returning Officer was founded on similar allegations mooted in the present complaint and, when that be so, the decision rendered in Annexure III judgment against the writ petitioner/complainant is conclusive and final, according to the counsel. A fresh complaint before the Magistrate (Annexure I) in such circumstances would not lie and, therefore, cognizance taken of the offences on such complaint by the Magistrate is

unsustainable and the entire proceedings are liable to be quashed, submits the counsel. Allegations raised in the complaint, it is submitted, relate to commission of offences three years prior to its presentation before the court and as such prosecution sought thereof is hopelessly barred under Section 468 of the Code, according to the counsel. Further more, the allegations raised in the complaint do not show that the petitioner had any guilty intention or knowledge while he furnished his educational qualifications in the affidavits submitted with his nomination papers when he contested election on two different occasions, according to counsel. When such be the case, the criminal proceedings launched against the petitioner under Annexure I complaint is nothing but a vexatious prosecution having no merit or legal basis and it cannot be permitted to be continued, is the submission of counsel urging for quashing such proceedings. Per contra, learned counsel for complainant Sri.Kaleeswaram Raj contended that the verdict entered in his writ petition under Annexure III judgment would no way interdict or bar the prosecution of petitioner for the

offences alleged under Annexure I complaint. Annexure III judgment does not amount to a discharge or acquittal of the accused and it was confined to the challenge against the decision of Returning Officer declining to act upon the representation made by complainant in accordance with law, more particularly, under the provisions of the Act, submits the counsel. Order of Returning Officer was challenged in a writ petition, and, Annexure III judgment was rendered holding that it was not a case for exercise of extraordinary jurisdiction, according to the counsel, would no way bar the writ petitioner, present complainant, in filing a complaint before the Magistrate to prosecute the petitioner for offences committed by him under the IPC and the Act. Learned counsel for complainant relied on **Institute of Chartered Accountants of India v. Vimal Kumar Surana and Another ((2011) 1 SCC 534)** and **Sangeetaben Mahendrabhai Patel v. State of Gujarat and another ((2012) 7 SCC 621)** to contend that no question of double jeopardy or issue estoppel would arise in the given facts of the case by virtue of Annexure III judgment rendered in the

writ petition as there was no trial, prosecution, acquittal or discharge of petitioner earlier and further the offences imputed under Sections 193, 198 or 199 of the IPC are not electoral offences but distinct and different offences the ingredients to constitute which are entirely different from electoral offences. Prosecution of petitioner for offences against public justice contemplated under the above Sections of the IPC is no way barred at any rate by Annexure III judgment rendered in the writ petition filed by the complainant earlier is the further submission of the counsel. Now, the Magistrate on the materials placed, both oral and documentary evidence tendered by complainant, has formed a conclusion that a prima facie case has been made out to proceed against the accused, for various offences under the Penal Code and the Act, and cognizance thereof taken and process ordered to the accused, according to the counsel, what, if any, is the relevance of Annexure III judgment would arise for consideration only in the trial of the case. Where Annexure III judgment cannot preclude taking of cognizance and trial of offences imputed in Annexure I complaint, and, its value or merit

is a matter to be considered if relevant at a later stage. It cannot be pressed into service to assail the cognizance taken and process ordered to accused, submits the counsel. Incorporation of a separate and distinct offence under Section 125-A of the Act will have no impact over prosecution of an offender when the allegations imputed in relation to an election in the complaint would also constitute penal offences under Sections 193, 198 and 199 of the IPC, submits the counsel. The offences under Sections 193, 198 and 199 of the IPC are offences against public justice and as such even if the allegations thereof have some nexus with 'the electoral offence' there could be no bar to prosecute the offender for such offences as well, according to counsel. Adverting to the punishment provided for the offence under Section 193 of the IPC, learned counsel submitted there is no merit in the challenge made that the complaint is barred under Section 468 of the Code.

5. Going through Annexure I complaint and Annexure II order passed by the Magistrate, to take cognizance of the

offences referred to on such complaint to order process against the petitioner, with reference to the submissions made by counsel on both sides, at the outset, it has to be stated that the cause of action for filing the complaint is over the filing of an affidavit with nomination paper, allegedly, containing false statements over the educational qualification, by petitioner when he contested election as a candidate from Eravipuram Legislative Assembly in the General Election in 2011. Particulars over his educational qualifications stated in the affidavits submitted with his nomination papers when he contested the election in 2006 and 2011, on both occasions, contained false statements to his knowledge, and the information supplied by him to the Protocol Officer, Kerala Legislative Assembly over his educational qualification when he was a member of that Assembly was also false, is the case of the complainant. Over the incorrectness or falsity of particulars regarding educational qualification of petitioner stated in his affidavit submitted with his nomination paper when he contested the election in 2006, admittedly, complainant had moved a

complaint before the Returning Officer alleging that the information given are false, seeking prosecution of petitioner for making such false statement. Decision taken by the Returning Officer adverse to the complainant was challenged by him in a writ petition before this Court, in which Annexure III judgment was rendered holding that it was not a fit case for invoking the extraordinary jurisdiction. That writ petition challenging the order of the Returning Officer declining to act upon his complaint was dismissed. Annexure III judgment was rendered in 17th February, 2010. Whatever be the case of complainant regarding the falsity of information supplied by petitioner over his educational qualification in the affidavit furnished with his nomination when he contested the election in 2006, steps were previously initiated by him for prosecution of petitioner through Returning Officer, and, that having failed, further challenges thereof were continued filing a writ petition making petitioner also a party respondent. That writ petition was dismissed under Annexure III judgment. Complainant did not approach the court earlier, but, only the Returning Officer to prosecute the

petitioner and so much so the adverse decision rendered against him under Annexure III judgment whereunder the issue whether any false statement was made by petitioner in the affidavit over his educational qualification was not adjudicated upon, has been projected by his counsel to contend that Annexure I complaint is perfectly entertainable even with respect to the allegations constituting the offence over the affidavit filed by petitioner in 2006 election. That contention is unworthy of any merit. Whether the issue thereof as such has been tried or not has least significance where it is shown that a binding decision has been rendered by this Court in Annexure III judgment turning down the challenge against the order of the Returning Officer declining to prosecute the petitioner. Complainant approached the Returning Officer but not the court then to prosecute the petitioner would no way enable him to prosecute the petitioner on the very same allegation when no reservation has been made in Annexure III judgment permitting him to do so. The time lag after the commencement of cause of action over the alleged false averments made in the affidavit in 2006 election by petitioner,

the steps taken by complainant to prosecute petitioner through the Returning Officer, the adverse decision rendered thereof against the complainant and further challenge to such decision with petitioner as a party respondent in the writ petition giving rise to Annexure III judgment by this Court, cannot be brushed aside as having no impact in entertaining any further complaint before a court with respect to the affidavit filed by petitioner as a candidate in 2006 election.

6. With the aforesaid showing that the case imputed over the false statement made by petitioner in his affidavit filed with the nomination in 2006 election cannot be gone into, the question is whether the complainant has made out any case to prosecute the petitioner for having given any false statement, knowing the same to be false, in his affidavit filed with his nomination paper when he contested the election in 2011. A reading of the complaint would show no specific allegation or imputation is made that petitioner has suppressed or given false or incorrect information over his educational qualification when

he filed an affidavit with his nomination paper to contest the election in 2011. What has been stated with respect to his educational qualification in the affidavit submitted with his nomination in the election in 2011 was false, is the case of the complainant. However it is seen other than general allegations raised over educational qualification of petitioner and also imputing him of collecting some documents from schools containing false entries, strangely enough no whisper is made in Annexure I complaint what was the educational qualification stated in the affidavit filed with the nomination paper and what way it was false or incorrect. A bald statement that he filed an affidavit stating false particulars of his educational qualification, without giving any data over the qualification claimed and why it is false, will not be sufficient to constitute an election offence for prosecution of the deponent of such affidavit.

7. No complaint for prosecution of an electoral offence with respect to the furnishing of incorrect or false particulars, knowing them to be false, over an affidavit sworn to and

submitted with the nomination paper by a candidate can be entertained unless specific and definite allegations revealing such offence are spelt out to take cognizance of such an offence and proceed further. Annexure I complaint as already indicated does not contain specific particulars of the false educational qualifications made in the affidavit by petitioner. A vague allegation that false particulars were stated in the affidavit cannot form the basis for prosecution of a candidate. There should be specific allegation with particulars imputing that he had failed to furnish information mandatorily required or gave false information which he knew or had reason to believe to be false or concealed any information in his affidavit. Whatever be the basis for imputing the penal offences where prosecution is founded on an electoral offence covered under Section 125-A of the Act the court cannot be oblivious of the circumstances why such a penal provision has been brought into the Statute compelling the candidates contesting the election to furnish information over certain matters which should necessarily be placed before the voters of the electorate. The Apex Court in

Union of India v. Association for Democratic Reforms ((2002) 5 SCC 294) and **People's Union of Civil Liberties v. Union of India ((2003) 4 SCC 399)** recognising and upholding the right of voters to have information over the criminal antecedents, assets and liabilities, including those of their spouse, dependent children, educational qualifications etc. of the candidates contesting the election have laid down certain prescriptions to be mandatorily complied by the candidates in furnishing such information with their nomination paper. Pursuant thereto, the Election Commission has issued a detailed order on 27.03.2003 mandating the furnishing of full and complete information by the candidate in the affidavit regarding the matters specified by the Apex Court. One among the matters to be furnished by the candidate is his educational qualification. Non-submission of such particulars or furnishing of false information or its concealment may entail the rejection of the nomination paper apart from the candidate being prosecuted for an electoral offence under Section 125-A of the Act. So much so, where a prosecution is sought to be proceeded against a

candidate with respect to such an electoral offence the allegation thereof must be specific to bring it within the ambit of Section 125-A of the Act satisfying one or other ingredient covered thereunder. In the present case, what the complainant seeks for is determination of the correctness or otherwise of the particulars of educational qualification given by petitioner in his affidavit filed with the nomination paper in 2011 with reference to some documents produced which would show that his qualifications are different. The court cannot be called upon to have such an enquiry imputing an electoral offence with some other penal offences where the complaint does not give specific particulars to show that an electoral offence had been committed by petitioner with respect to the affidavit filed by him with his nomination paper for contesting the election. A complaint for prosecuting petitioner whether it be for a penal offence or under the Act can be proceeded only if it is prima facie shown that he had given false information, knowing or reason to believe the same to be false, or concealed any information thereof while furnishing the particulars thereof in his affidavit filed with his

nomination paper when he contested the election in 2011. Where no such case is made out, prima facie, in the complaint, and only a case for testing particulars given in the affidavit with reference to particulars covered by some documents produced, no case to proceed for an election offence would arise. With respect to affidavit when no election offence is made out prima facie, then, prosecution of petitioner for penal offences imputed thereof will also not lie. Cognizance taken of the offences on the complaint by the Magistrate under Annexure II order and process ordered to the petitioner, in such circumstances, cannot be sustained.

8. I do not find any merit in the submission of the learned counsel for complainant relying on **Institute of Chartered Accountants of India's case and Sangeetaben Mahendrabhai Patel's case**, cited supra, to contend that Annexure III judgment would no way interdict complainant from prosecuting his complaint and further that penal offences imputed in his present complaint stand on a different footing

from that of the electoral offences as the ingredients to establish the same are distinct and different. Decisions cited by the counsel have no application to the facts involved in the present case. I have already stated that the prosecution with respect to the imputations made over the affidavit filed by petitioner when he contested the election in 2006 in the light of Annexure III judgment is not permissible. Complainant has included some penal offences in his complaint to contend that apart from the electoral offence in relation to that affidavit those penal offences have also been committed by petitioner. He has raised some allegations that petitioner had collected some false documents from schools, and furnished false information to the Protocol Officer of the Kerala Legislative Assembly regarding his educational qualification etc., while he continued as a member of that Assembly. Complainant has imputed such allegations in his complaint instituted five years after the filing of the affidavit in 2006 election and that too after passing of Annexure III judgment by this Court cannot at all be lost sight of. Further more, where a member of a Legislative Assembly furnished some

false information regarding his educational qualification to an Officer of the Legislative Secretariat and any publication thereof was made, if at all that involves an offence affecting public justice, such issues touching upon the business of Legislative Assembly, immunities provided to members of the Assembly etc. may also arise for consideration in deciding the question whether a prosecution before the court would lie against the member who gave such false information. In the present case, no dilution over such questions is called for since no particulars are furnished other than some bald allegations raised in the complaint over the furnishing of false particulars of educational qualification by petitioner when he continued as a member of the Legislative Assembly. More than that, the penal offences imputed alleging acts against public justice are closely linked with the electoral offences. A reading of the complaint would show that such offences have been alleged in relation to the affidavits filed on two occasions by petitioner in 2006 and 2011 when he contested the election. No case has been made out in the complaint to prosecute the petitioner separately for any

penal offence as distinct from the electoral offence relating to the affidavit filed by him in the election. When such be the case, the arguments raised by the learned counsel for complainant relying on the authorities referred to above to support the complaint and thereby to prosecute the petitioner for the offences imputed has no basis or merit.

Annexure II order passed by the Magistrate and all criminal proceedings arising from Annexure I complaint against petitioner are quashed under Section 482 of the Code.

Petition allowed.

S.S.SATHEESACHANDRAN
JUDGE

prp